

other counsel and does not consent to withdrawal.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination “upon the consent of both client and attorney,” or “upon order of the court, upon the application of either client or attorney, after notice from one to the other.” Withdrawing Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. A trial date is not set. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, to retain “contract counsel” or to represent herself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The Court makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney’s Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on February 11, 2026. The withdrawal is effective immediately.
3. Withdrawing Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at her last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference for December 15, 2026, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that she is ordered to appear by zoom or in person.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court’s Order (MC-053) and the Change of Address form (MC-040).

6. 9:00 AM CASE NUMBER: C23-01684
CASE NAME: STAR JOSHUA VS. THE COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:

TENTATIVE RULING:

Summary: Entry of Judgment was filed on April 20, 2026. This hearing is **vacated**. No appearance is required on June 17, 2026.

7. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, summary adjudication filed by plaintiffs David Hammond and Hal Seibert. For the reasons set forth, the motion for summary judgment and in the alternative, summary adjudication is **denied**.

Background and Brief Procedural History

On October 11, 2023, plaintiffs David Hammond and Hal Seibert filed a complaint with four causes of action, including quiet title, declaratory relief, and interference with an easement. They filed the operative First Amended Complaint ("FAC") on September 6, 2024 alleging four causes of action. On June 2, 2025, Plaintiffs filed a request for partial dismissal, dismissing their second and fourth causes of action for declaratory relief. Only the first cause of action for quiet title and the third cause of action for interference with an easement remain.

All defendants, including the "Doe" defendants, have been dismissed from the action except for the current owner of the property subject to the action, defendant DeEtte R. Sipos, as an individual and as Trustee of the DeEtte R. Sipos Trust Under the EHR QPRT Dated 3/26/2003, and "All Persons Unknown, Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Burdened Property Described in the Complaint Adverse to, or a Cloud Upon, the Public Easement Right Claimed Herein." (6/24/2025 US Bank Dism.; 8/5/2025 Bart Wooten Dism.; 10/22/2025 Doe Def. Dism.)

Plaintiffs moved for a preliminary injunction which the Court heard and denied on February 7, 2024. (2/7/2024 Order.) Plaintiffs renewed their motion for a preliminary injunction with new evidence obtained after the original preliminary injunction hearing. Weighing the evidence before the Court on that renewed motion, the Court granted the request for preliminary injunction, providing limited interim relief by ordering a 2.4 foot portion of the fence on the Sipos Property from the Wooten Property line to be removed based on evidence of a "hole in the wall," a narrow gap between the end of the concrete or stucco wall on the Sipos Property and the Wooten Property that allowed bicyclists to access the Cut-Through, among other evidence. (7/29/2025 Order After Hearing [capitalized terms defined in the OAH].)

Legal Standards for Ruling on Plaintiff's Motion for Summary Judgment

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

A plaintiff as the moving party does not need to disprove the defendant's defenses; a plaintiff moving for summary judgment meets its burden of showing there is no defense to the claim if it proves each element of the cause of action that would entitle the plaintiff to judgment on that cause of action in its favor. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849, 853; *Paramount Petroleum Corp.*

v. Superior Court (2014) 227 Cal.App.4th 226, 241; Code Civ. Proc. § 437c(p)(1).) "Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc. § 437c(p)(1).)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

In deciding a motion for summary judgment, the Court views the evidence in the light most favorable to the opposing party, drawing "all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of the motion are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180 [quoting *Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392].) (*See also* Code Civ. Proc. § 437c(d) ["[S]ummary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact."].) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1483.)

Procedural Issue: Defendant's Additional Facts and Objection Thereto

Defendant Sipos filed a Response to Plaintiffs' Separate Statement of Undisputed Material Facts ("Def. Resp.") and a separate document with Defendant's Additional Facts ("AFs") she contends are material and raise triable issues. Plaintiffs object to Sipos not including her AFs in the Defendant's Response and filing them in a separate pleading. They argue the separate pleading violates California Rule of Court, Rule 3.1350(f)(3).

Rule 3.1350(e) lists the separate pleadings which "must" be included in the opposition to a motion for summary judgment or summary adjudication, including the opposing party's separate statement in opposition to the motion. (Cal. R. Ct., Rule 3.1350(e)(2).) Rule 3.1350(f) cited by Plaintiffs specifies the contents and form of the opposing party's separate statement which provides that "[i]f the opposing party contends that additional material facts are pertinent to the disposition of the motion, those facts must be set forth in the separate statement." (Cal. R. Ct., Rule 3.1350(f)(3).) While Defendant's AFs should have been included in Defendant's Response to Plaintiffs' Separate Statement, the Court fails to see any prejudice to Plaintiffs from noncompliance with the Rule. The Court will consider the

AFs as presented; Plaintiffs' objection to the AFs on this ground is **overruled**.

Procedural Defect: Deficient Citations to Evidence in Plaintiffs' Separate Statement

Plaintiffs filed approximately 62 declarations in support of the motion. The Hammond Declaration is lengthy, consisting of 22 paragraphs and attaching Exhibits A through O. UMFs 7, 8, 24, and 25 cite most, but not all, of the declarations, without reference to any specific paragraphs or exhibits but instead followed by the word "*passim*." Defendant objects to failure to cite specifically to the supporting evidence. The Court agrees that at a minimum with reference to the lengthier Hammond Declaration, the supporting citations should identify the specific paragraphs and/or exhibits Plaintiffs contend support the UMF. Nevertheless, the Court has considered the evidence.

Requests for Judicial Notice

A. Plaintiffs' Request for Judicial Notice and Defendants' Evidentiary Objections

Plaintiffs ask the Court to take judicial notice of a number of documents. (Pl. RJN Exhs. A-L.) Plaintiffs ask the Court to take judicial notice of certain recorded documents, including the Minor Subdivision Map MS 263-78 ("MS 263-78") with the easement dedication central to the case (Pl. RJN Exhs. A and D), Subdivision Map MS 154-76 ("MS 154-76") (Pl. RJN Exh. E), and the grant deed to Sipos of the residential property Plaintiffs contend is subject to the disputed easement (Pl. RJN Exh. L). Plaintiffs' unopposed request for judicial notice of Pl. RJN Exhs. A, D, E, and L is **granted**, subject to the limitations on judicial notice. (Evid. Code § 452(c); *Cheveldave v. Tri Palms Unified Owners Assn.* (2018) 27 Cal. App. 5th 1202, 1216, fn. 5 ["We have taken judicial notice of a deed reflecting the Association was granted property within Riverside County. By granting the Association's request for judicial notice, we have noticed the deed exists, but we have not noticed the truth of its contents. [Citation omitted.]".])

The Court also **grants** Plaintiffs' unopposed request for judicial notice of a stipulated judgment and order in the related case, *Tiernan v. Diablo Community Services District, et al.*, Contra Costa Superior Court Case No. MSC17-02529 ("Tiernan Action") (Pl. RJN Exhs. F and G), and the Court's July 29, 2025 Order After Hearing on Plaintiffs' renewed motion for a preliminary injunction (Pl. RJN Exh. J), subject to the applicable limitations on judicial notice of orders under the case law. (Evid. Code § 452(d); *South Lake Tahoe Property Owners Group v. City of South Lake Tahoe* (2023) 92 Cal.App.5th 735, 751 [court may take judicial notice "of the truth of results reached" but not of "the truth of hearsay statements in decisions."].)

Plaintiffs request judicial notice of another recorded document, a "Corner Record" prepared by a surveyor hired by Plaintiffs (Mark H. Wehber) and which states on its face it was "examined and filed" by a county surveyor on October 29, 2024. (Pl. RJN Exh. K.) Defendant objects to the request (see Def. Evid. Obj. No. 3), and in response, Plaintiffs state that "they do not seek to establish disputed facts through judicial notice, but to present the Court with official records" that are part of the history of the easement. (Pl. Resp. to Obj. p. 3, ll. 16-18.) The Court **grants** the request for judicial notice of the existence of the document as a part of relevant government records and not the truth or proper interpretation of the content of the record. (Evid. Code § 452(c); *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal. App. 4th 182, 193-194.) (See also *Horne v. District Council 16 Internat. Union of Painters & Allied Trades* (2015) 234 Cal. App. 4th 524, 535 ["While we take judicial notice of the OLMS fact sheet and letters as public records, we do not accept the truth of the statements contained

therein, which are obviously subject to dispute. [Citations omitted.]").)

Plaintiffs also request judicial notice of an exchange of letters between the East Bay Trails Council and the Contra Costa County Public Works Department related to the proposed subdivision reflected in MS 263-78 (Pl. RJN Exh. B), and two letters from the State Department of Parks and Recreation dated January 22, 2024 to unidentified "Home Owners" (Pl. RJN Exhs. H and I). Defendant objects to the Court taking judicial notice of those documents to the extent the request asks the Court to take judicial notice of the truth of the content of the documents. (Def. Evid. Obj. to Pl. RJN Obj. Nos. 1 and 2.) Defendant also objects to Exhibit B on the ground the Finch letter was from a private citizen and not a record created by a government employee, such that Evidence Code section 1280 does not apply, and the Gray letter is not admissible for lack of a declaration authenticating the letter or laying a foundation for its consideration by explaining Gray's role in connection with the review of the proposed subdivision reflected in MS 263-78. (See Def. Evid. Obj. to Pl. RJN Obj. No. 1.)

Plaintiffs assert they are not asking the Court to take judicial notice of the truth of the content of any of the statements in Plaintiffs' RJN Exhibits B, H or I, but only the existence and content of the public records. Plaintiffs do not address Defendant's objection based on the lack of authentication of Exhibit B, and that the Finch letter to the Public Works Department is not an act of a public employee, but rather an inquiry from a private citizen. Notably, in ruling on the renewed motion for preliminary injunction, the opponents of the motion did not object to the admission of Exhibit B. Plaintiffs have not cited any declaration which authenticates Exhibit B, including the Gray letter. In the face of the current evidentiary objections to Exhibit B, the Court **sustains** Plaintiffs' objections and **denies** the request for judicial notice of Exhibit B on those grounds.

As to Exhibits H and I, the Court will grant the request for judicial notice to the extent of the existence of the documents but not the truth or proper interpretation of the content of the letters which are reasonably disputable. (Evid. Code § 452(d); *Ragland, supra*, 209 Cal. App. 4th at 193-194; *Horne, supra*, 234 Cal. App. 4th at 535.) The Court notes that the decision *Gallup v. Superior Court* (2015) 235 Cal.App.4th 682 cited by Defendant was ordered depublished by the California Supreme Court and is not citable. (*Gallup v. Superior Court* (June 10, 2015), No. S225924, 2015 Cal. LEXIS 4253 at *1; Cal. R. Ct., Rule 8.1115(a).)

B. Defendant's Request for Judicial Notice

Defendant asks the Court to take judicial notice of three grant deeds (Def. RJN Exhs. 1-3) and of Plaintiffs' First Amended Complaint ("FAC") filed September 6, 2024 (Def. RJN Exh. 4). The Court **grants** the unopposed request. (Evid. Code §§ 452(c) and (d); *Cheveldave, supra*, 27 Cal. App. 5th at 1216, fn. 5; *South Lake Tahoe Property Owners Group, supra*, 92 Cal.App.5th at 752 [court takes judicial notice of existence of documents in court file, but not truth of allegations].)

Analysis

Plaintiffs' motion is supported in part by a Separate Statement ("SS") of Undisputed Material Facts ("UMFs") which is segregated into three parts: UMFs 1-17 in support of Plaintiffs' motion for summary judgment; UMFs 18-34 in support of Plaintiffs' motion for summary adjudication of the first cause of action for quiet title, and UMFs 36-44 in support of Plaintiffs' motion for summary adjudication of the third cause of action for interference with an easement. Plaintiffs' motion is also supported by the request for judicial notice addressed above and approximately 62 declarations, most from persons

who declare that they have used the Disputed Easement (more fully defined below) from varying times dating to the 1980s and earlier. In opposition to the motion, in addition to Defendant's Response to the SS and AFs, Defendant has filed declarations by Sipos, Bart Wooten, and Dominic Signorotti, as well as a request for judicial notice addressed above.

Plaintiffs have objected to portions of Defendant's declarations. Those objections are addressed below. Defendants objected only to portions of Plaintiffs' request for judicial notice. In issuing this ruling, the Court has not relied on any evidence to which objections have been sustained.

A. Undisputed Material Facts

Defendant does not dispute a number of the facts in Plaintiffs' SS. Plaintiffs are members of the public who are claiming that a trail depicted in MS 263-78 as a "25' riding and hiking easement," also depicted in a survey attached as Exhibit 1 to the DeKnoblough Declaration, is a public easement (the "Disputed Easement"). (UMFs 1, 3, 18, 20, 36.) There is no dispute that the Disputed Easement is located on the real property commonly known as 2354 Alameda Diablo in Diablo (the "Sipos Property") which is owned by Defendant. (UMFs 2, 4, 19, 21.) It is undisputed that MS 263-78 contains a statement identified as "owner's certificate" by Milton and Pattie Perlow that states "The area marked '25' riding and hiking easement' is dedicated to the Department of Parks and Recreation of the State of California, or its designee, for public use for riding and hiking." (UMF 5.) There is no record that the parks department or its designee accepted the offer of dedication made in MS 263-78. (UMFs 6, 23, 35.) (Though the Defendant's Response to the SS omits UMF 35, UMFs 6 and 23 have the same text and were listed as undisputed.) There is no dispute that Sipos purchased the Sipos Property with knowledge of this litigation and the Disputed Easement. (UMF 15.)

Certain facts are not genuinely disputed, or they are only partially disputed. The Court does not find a genuine dispute exists as to UMFs 10, 27, and 37, as there is no dispute that the Court's July 17, 2024 Order in the Tiernan Action "set aside" the U.S. Bank Stipulated Judgment. (Pl. RJN Exh. G, PDF p. 24 of 26.) Though the Court's tentative ruling states the Court agreed with the moving parties that the Stipulated Judgment "is void," the Court accepts only the truth of the result reached and not any hearsay statements in the order. (*South Lake Tahoe Property Owners Group, supra*, 92 Cal.App.5th at 751.) The Court agrees with Defendant that the material fact is that the Stipulated Judgment was set aside, and that fact is not disputed.

There is also no genuine dispute that the Sipos Property is also burdened by a state owned 60-foot right of way on Mt. Diablo Scenic Boulevard as well as utility easements. (UMFs 16, 17, 33, 34, 43, 44.) Defendant disputes the relevance or materiality of the facts and notes these facts are outside the allegations of the FAC. (*Doe, supra*, 23 Cal.App.5th at 661 and *Teselle, supra*, 173 Cal.App.4th at 161 [issues material to summary judgment motion are bounded by the pleadings].) Plaintiffs specifically alleged the 60-foot right of way in the FAC. (FAC ¶¶ 10, 12.) (*See* UMFs 16, 33, 43.) The Court agrees with Defendant that the FAC does not allege the Sipos Property is burdened with utility easements, including ones that are in the same general area as the Disputed Easement, but their existence is not disputed by Defendant. (UMFs 17, 34, 44.)

B. Material Facts Genuinely Disputed

As relevant to the quiet title cause of action, Defendant raises genuine disputes as to UMFs 7, 8 and 9 (and UMFs 24, 25, and 26), both through her Response to those UMFs, and based on AFs 6 through

11. First, the Court agrees with Defendant that UMFs 7 and 8 (and UMFs 24 and 25) are legal conclusions not statements of fact. Those UMFs address the easement being "accepted by implication through public use" and the "public's use constituting implied acceptance of the express easement dedication," which are ultimate conclusions of law the Court must make based on the facts and evidence, as set forth in the legal analysis below. The facts are details regarding the use of the Disputed Easement after the offer of dedication that are sufficient under applicable law to support the legal conclusion that the use constitutes implied public acceptance of the express dedication. In any event, Defendant raises factual dispute as to (a) the scope of the offer of dedication, specifically the scope of the use by the public provided for in the offer of dedication, (b) whether the public use was consistent with the use offered in the dedication, and (c) whether the past owners of the Sipos Property near the time the offer of dedication was made revoked the offer by placing fencing, hedges and other obstructions. Among other things, evidence regarding Condition No. 15 to the approval of the proposed minor subdivision map MS 263-78 defined and limited the terms of the offer of dedication, which did not include bicycle use, and whether there was fencing on the Sipos Property since the house was constructed in 1980 that blocked the Disputed Easement and required those using it to access the trail through the Wooten Property. (Signorotti Decl. Exh. 6; Wooten Declaration ¶¶ 2-5.) The Wooten Declaration disputes declarations asserting there was no fencing until later in the 1980s rather than beginning in 1980 when the residence on the Sipos Property was built, and his declaration indicates that users of the Disputed Easement went over his adjoining property to access it. (Wooten Decl. ¶¶ 2-5.)

As to the facts pertaining to the interference with easement cause of action, certain of the facts Defendant lists as disputed essentially dispute whether legally there is an "obstruction" of the Disputed Easement or "actionable interference" with the Disputed Easement but not necessarily that there is steel fencing or other material located in the area subject to the Disputed Easement. (UMFs 11-14, 28-31, 38-41 and Def. Resp. to UMFs 11-14, 28-31, and 38-41.) Defendant contends the UMFs regarding the hedge row obstructing the Disputed Easement are outside the allegations of the FAC and what the FAC alleges is obstructing the Disputed Easement. (Def. Resp. to UMFS 14, 31, 41.) (See also FAC ¶¶ 18 [defining the "Obstructions"] and 19.)

C. Quiet Title – 1st C/A

1. Legal Framework

Code of Civil Procedure section 760.020 authorizes an action to "establish title against adverse claims to real or personal property or any interest therein." (Code Civ. Proc. § 760.020(a).) The Court in *Ridec LLC v. Hinkle* (2023) 92 Cal.App.5th 1182 explained, "To obtain a quiet title judgment under the Act, the plaintiff must (1) file a verified complaint that names, as defendants, (a) '[all] persons having adverse claims' to the plaintiff's title, and that includes persons whose claims are 'of record,' whose claims are 'known to the plaintiff,' or whose claims are 'reasonably apparent from an inspection of the property,' and (b) 'all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest in the property described in the complaint adverse to plaintiff's title, or any cloud upon plaintiff's title thereto' " ([Code Civ. Proc.] § 762.060, subds. (b) & (a); see § 761.020); (2) record a lis pendens regarding the pendency of the quiet title action in the county recorder's office where the property is located (§ 761.010, subd. (b)); and (3) establish entitlement to a quiet title judgment with

'evidence of [the] plaintiff's title' rather than 'by default' (§ 764.010), although the courts are split as to whether this requires an evidentiary hearing at which a defaulted defendant may participate [citations omitted] or merely a prove-up hearing at which a higher quantum of evidence must be produced [citation omitted]. [Citations omitted.]" (*Id.* at 1195-1196.)

The Court has addressed at some length in two prior rulings on Plaintiffs' motions for preliminary injunction the applicable legal authority regarding offers of dedication of land for public recreational use. Civil Code section 1009(b) provides that there can be no implied dedication by public use of private property after March 4, 1972, the effective date of the statute, unless "an express written irrevocable offer of dedication of such property to such use, made by the owner thereof in the manner prescribed in subdivision (c) of this section, which has been accepted by the county, city, or other public body to which the offer of dedication was made, in the manner set forth in subdivision (c)." (Civ. Code § 1009(b).) Civil Code section 1009(c) provides: "In addition to any procedure authorized by law and not prohibited by this section, an irrevocable offer of dedication may be made in the manner prescribed in Section 7050 of the Government Code to any county, city, or other public body, and may be accepted or terminated, in the manner prescribed in that section, by the county board of supervisors in the case of an offer of dedication to a county, by the city council in the case of an offer of dedication to a city, or by the governing board of any other public body in the case of an offer of dedication to such body." (Civ. Code § 1009(c).) Government Code section 7050 provides in part that an offer of dedication "executed, acknowledged, and recorded in the same manner as a conveyance of real property" when recorded is "irrevocable."

The Court has set forth the applicable law regarding offers of express dedication that may be accepted by implied acceptance in its two prior rulings on Plaintiffs' motions for preliminary injunction. The Court reiterates its conclusion based on applicable law that an express offer of dedication, as was undisputedly made in MS 263-78, can be impliedly accepted by use consistent with the dedication offered. (*Mikkelson v. Hanson* (2019) 31 Cal.App.5th 170, 178-179; *Biagini v. Beckham* (2008) 163 Cal.App.4th 1000, 1009 [stating a statutory dedication which fails because the public agency has not accepted the offer of dedication made under the Subdivision Map Act can operate as a common law dedication when accepted by the public]; Civ. Code § 1009(b).) In *Prout v. Department of Transportation* (2018) 31 Cal.App.5th 200, the Court found such an implied acceptance after an express offer of dedication made in 1990, though without addressing Civil Code section 1009(b). (*Id.* at 208 [affirming judgment for CalTrans on plaintiff's inverse condemnation claim, finding a completed common offer of dedication by acceptance through use of the property offered for dedication]. (See also *Biagini, supra*, 163 Cal.App.4th at 1009.)

In *Mikkelson*, the Court explained that where there is an offer of dedication, including an express offer, " 'acceptance on the part of the public is necessary to a valid dedication'," which may be actual or implied. (*Mikkelson, supra*, 31 Cal.App.5th at 176 [*dicta*, as there was no express written offer of an irrevocable dedication of the property in that case, so the statutory exception stated in Civil Code section 1009(b) did not apply].) Acceptance is " 'actual when formal acceptance is made by the proper authorities, and implied, when a use has been made of the property by the public for such a length of time as will evidence an intention to accept the dedication.' [Citation omitted.]" (*Id.* [quoting *County of Inyo v. Given, supra*, 183 Cal. at 418].) "[T]he use which implies an acceptance must occur within a reasonable time after the offer is made. [Citation omitted.] What constitutes a reasonable time

depends upon the circumstances in each case. [Citation omitted.] The sufficiency of a use to constitute acceptance as well as the timeliness thereof ordinarily are matters which involve questions of fact." (*McKinney v. Ruderman* (1962) 203 Cal.App.2d 109, 116 [emphasis added].) In addition, in *Biagini*, the Court also affirmed the trial court determination that an express irrevocable offer of dedication can be revoked under common law principles so as to terminate the public's ability to accept the offer by public use, though the offer must remain open for acceptance by the public entity to which it has been offered. (*Id.* at 1016-1017.)

In addition to disputes over whether there was acceptance of the offer of dedication, the parties dispute the scope of any use granted by the offer of dedication, even if it was accepted as defendants contend. If the offer of dedication was only for use limited to hiking and equestrian riding, not bicycle riding, then it is not clear that bicycle riding qualifies for implied acceptance. Contract principles generally govern offers of dedication, including in this case whether the easement was granted to cover bike riding or only horseback riding. (*Shenson v. County of Contra Costa* (2023) 89 Cal.App.5th 1144, 1172.) " If the language is clear and explicit in the conveyance, there is no occasion for the use of parol evidence to show the nature and extent of the rights acquired.' [Citations omitted.] (*Van Klompenburg v. Berghold* (2005) 126 Cal.App.4th 345, 349 [emphasis added, quoting *Scrubby v. Vintage Grapevine, Inc.* (1995) 37 Cal.App.4th 697, 702].) (*See also* Civ. Code § 806 ["The extent of a servitude is determined by the terms of the grant, or the nature of the enjoyment by which it was acquired."]; Civ. Code § 1066 ["Grants are to be interpreted in like manner with contracts in general, except so far as is otherwise provided in this article."].)

"The circumstances existing at the time of and giving rise to the conveyance determine the nature and extent of the easement. [Citations omitted.] The use may change or increase, but only so long as the change does not materially increase the burden on the servient tenement. [Citations omitted.] Any permissible change would be limited 'to such uses as the facts and circumstances shown were within the reasonable contemplation of the parties at the time of the conveyance.' [Citation omitted.] (*Friends of Hastain Trail v. Coldwater Development, LLC* (2016) 1 Cal.App.5th 1013, 1031 [emphasis added].) (*See also* Code Civ. Proc. § 1860.) If the scope of an express easement is unclear, the scope includes " 'such uses as the facts and circumstances show were within the reasonable contemplation of the parties at the time of the conveyance.' [Citation omitted.]" (*Camp Meeker Water System, Inc. v. Public Utilities Com.* (1990) 51 Cal.3d 845, 867, superseded by statute on another ground, as stated in *Pacific Bell v. Public Utilities Com.* (2000) 79 Cal.App.4th 269, 281.)

2. Triable Issues of Material Fact Preclude Granting Summary Judgment and Adjudication of the Quiet Title Cause of Action

The Court finds there are triable issues of fact pertinent to the determination of the quiet title cause of action. The Court highlights some of those issues below.

a. Condition 15 Related to Approval of the Minor Subdivision

Sipos argues that expanding the Disputed Easement to include bicycling violates the condition on which the subdivision reflected in MS 263-78 was approved, such that any expansion is legally impermissible. Sipos points to documentation related to the approval of the Perlows' proposed minor subdivision of their land to create what has become the Sipos Property, in particular, Condition 15 which was one of the conditions granting the approval of the minor subdivision that led ultimately to the recording of MS 263-78 with the offer of dedication of the Disputed Easement. (Signorotti Decl.

Exh. 6.) The condition restricts the use of the easement to pedestrian and equestrian traffic. (Signorotti Decl. Exh. 6.)

Sipos cites provisions of the Subdivision Map Act, including Government Code sections 66473, 66474, and 66499.37 pursuant to which Sipos argues that once conditions on the subdivision are approved, they are "locked." (Opp. p. 10.) Government Code sections 66473 and 66474 address when a final subdivision map can be disapproved. Subdivision (g) of Government Code section 66474 provides a subdivision map may be disapproved upon a finding that "the design of the subdivision or the type of improvements will conflict with easements, acquired by the public at large, for access through or use of, property within the proposed subdivision. In this connection, the governing body may approve a map if it finds that alternate easements, for access or for use, will be provided, and that these will be substantially equivalent to ones previously acquired by the public. This subsection shall apply only to easements of record or to easements established by judgment of a court of competent jurisdiction and no authority is hereby granted to a legislative body to determine that the public at large has acquired easements for access through or use of property within the proposed subdivision." Government Code section 66499.37 sets forth the limitation period for challenging decisions concerning approval of a subdivision.

The Court in *El Patio Investments, Inc. v. Permanent Rent Control Bd.* (1980) 110 Cal.App.3d 915 cited by Sipos quoted a prior California Supreme Court decision, *Youngblood v. Board of Supervisors* (1978) 22 Cal.3d 644, to explain that conditions imposed in a discretionary approval of a tentative subdivision map become final once the applicable local agency exercises its discretion and approves the tentative map with those conditions: " '[I]t is only fair to the developer and to the public interest to require the governing body to render its discretionary decision whether and upon what conditions to approve the proposed subdivision when it acts on the tentative map. Approval of the final map thus becomes a ministerial act once the appropriate officials certify that it is in substantial compliance with the previously approved tentative map.' [Citations omitted.]" (*Id.* at 924 [holding the city could not impose rent control conditions on a conversion of apartments to condominiums after approval of the tentative map].) (*See also* Govt. Code § 66473 [stating in relevant part, "a final map shall be disapproved only for failure to meet or perform requirements or conditions which were applicable to the subdivision at the time of approval of the tentative map"].)

In reply, Plaintiffs cite the language of Condition 15 which states in part that "Final details regarding the easement shall be determined and approved, after consultation with the State Parks Department and the applicant, by the Planning Director prior to the filing of the final map," and they argue those "final details" made the easement a "riding" easement including bicycle riding. That sentence should be read in the context of the entirety of Condition 15, which yields a plausibly different meaning. "A public riding and hiking easement shall be dedicated to the Department of Parks and Recreation of the State of California and shall connect Mt. Diablo Scenic Boulevard to Alameda Diablo across the south side of Parcel 1. Final details regarding the easement shall be determined and approved, after consultation with the State Parks Department and the applicant, by the Planning Director prior to the filing of the final map. The easement shall be restricted to equestrian and pedestrian traffic. Under no circumstances shall vehicular traffic over the easement be allowed." (Signorotti Decl. Exh. 6.) To the extent Plaintiffs contend that the "final details" including use of the term "riding" to expand the equestrian and pedestrian traffic to bicycles based on the local planning department's "consultation with the State Parks Department and the applicant," the documentation before the Court does not definitively show one way or another that the planning department's "restricted" uses were modified rather than adopted as stated, other than the offer of dedication set forth in MS 263-78. The arguments concerning the meaning of Condition 15 only highlight the disputed factual issues about

the Disputed Easement that preclude summary adjudication of the quiet title cause of action and summary judgment on the FAC.

The Court notes that if the conditions for approval of the subdivision in fact became immutable with respect to the Disputed Easement and offer of dedication once the subdivision tentative map was approved, that may raise a question as to whether in light of that theory, the offer of dedication could be revoked. The Court need not address that issue given the existence of triable issues warranting denial of the motion.

b. Conflicting Evidence on Fencing and Possible Revocation of the Offer of Dedication Before Acceptance

In ruling on a summary judgment motion, the Court is prohibited from weighing the evidence, and the Court is required to liberally construe the evidence in opposition to the motion. (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; *D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.) The testimony of one witness can constitute substantial evidence. (*Greenwich S.F., LLC v. Wong* (2010) 190 Cal.App.4th 739, 767-768 [though reversing a verdict granting lost profits as damages, court stated, "The testimony of one witness may provide substantial evidence. [Citation omitted.] Cancelled checks or official documentation of the costs incurred are not required to support the jury's award. The absence of such documentation goes to the weight of the evidence and the credibility of the witness. Those determinations are for the jury."].)

There is no dispute that the State Parks and Recreation Department to whom the offer of dedication was made never accepted the offer. The Wooten Declaration raises triable issues regarding whether the offer of dedication was impliedly revoked not long after the recording of MS 263-78, when the former owner(s) of the Sipos Property erected fencing that blocked the southern entry point to the Disputed Easement, fencing which the evidence suggests has been in place in various forms (possibly barbed wire, wooden fence, stucco or concrete fence, then metal fencing) for decades more or less since the time the residence was built in 1980. (Wooten Decl. ¶¶ 2-5; L. Scott Decl. ¶ 5 [acknowledging the area was rural but there may have been barbed wire fencing; while she says the barbed wire fencing did not inhibit her use, that was also at a time when the Wooten property was completely open and when Wooten declares people had to use his property to access the Disputed Easement].)

As the neighboring property owner and resident, Wooten can address the condition of and access to the Disputed Easement, and he can certainly address whether or not persons using the Disputed Easement were accessing the easement by traversing his property. (Wooten Decl. ¶¶ 2-5.) (*See also* L. Scott Decl. ¶ 5.) The Court cannot weigh the evidence or the credibility of testimony on a motion for summary judgment, as stated in the authorities cited above. The procedural posture of this motion is entirely different from the motions for preliminary injunction, where the Court could weigh the evidence.

c. Material Disputes Over Meaning of Terms of Offer of Dedication

The parties dispute the meaning of the terms of the offer of dedication and the scope of any use granted by the offer of dedication, including the implications of Condition 15. (Signorotti Decl. Exh. 6.) Contract principles generally govern offers of dedication, including in this case whether the easement was granted to cover bike riding or only horseback riding. (*Shenson v. County of Contra Costa* (2023) 89 Cal.App.5th 1144, 1172.) (*See also* Civ. Code § 806 ["The extent of a servitude is determined by the

terms of the grant, or the nature of the enjoyment by which it was acquired."]; Civ. Code § 1066 ["Grants are to be interpreted in like manner with contracts in general, except so far as is otherwise provided in this article."].)

The Court rejects Plaintiffs' position that the meaning of the terms used in the offer of dedication, specifically "riding," are clear and unambiguous in light of the conflicting evidence regarding the intent of the offer of dedication at the time it was made. Applying contract principles, "[p]arol or extrinsic evidence is admissible to resolve an ambiguity. [Citations omitted.] In such cases, the court engages in a two-step process: 'First, the court provisionally receives (without actually admitting) all credible evidence concerning the parties' intentions to determine "ambiguity," i.e., whether the language is "reasonably susceptible" to the interpretation urged by a party. If in light of the extrinsic evidence the court decides the language is "reasonably susceptible" to the interpretation urged, the extrinsic evidence is then admitted to aid in the second step--interpreting the contract.' [Citation omitted.]" (*WYDA Associates v. Merner* (1996) 42 Cal. App. 4th 1702, 1710 [emphasis added].) (See also *Casa Herrera, Inc. v. Beydoun* (2004) 32 Cal.4th 336 ["The parol evidence rule is codified in Civil Code section 1625 and Code of Civil Procedure section 1856. [Citation omitted.] It 'generally prohibits the introduction of any extrinsic evidence, whether oral or written, to vary, alter or add to the terms of an integrated written instrument.' [Citation omitted.] The rule does not, however, prohibit the introduction of extrinsic evidence 'to explain the meaning of a written contract . . . [if] the meaning urged is one to which the written contract terms are reasonably susceptible.' [Citation omitted.] ¶] Although the rule results in the exclusion of evidence, it 'is not a rule of evidence *but is one of substantive law.*' [Citation omitted, italics in original, underscoring added].)

The evidence is in dispute as to the meaning of the term "riding" in the recorded subdivision map, MS 263-78. In particular, as set forth above, Condition 15 of the conditions for approval of the Perlows' proposed subdivision which was the basis for the recording of MS 263-78 conditioned the approval of the subdivision on the dedication of the Disputed Easement for "equestrian riding and hiking." (Signorotti Decl. Exh. 6.) Other contemporaneous documentation also suggests a concern that an easement for an equestrian riding trail and hiking trail be granted in allowing the property to be subdivided. (Signorotti Decl. Exh. 3.)

At least one of Plaintiffs' declarants indicates that the Disputed Easement was initially used for equestrian riding, mostly by residents and people boarding their horses in Diablo, but that the equestrian use all but disappeared in the 1980s. (See L. Forman Decl. ¶¶ 3-6 [former resident, used Disputed Easement for walking and horseback riding, but by mid to late 1980s, "most horses were gone from Diablo"].) An offer of dedication of "Kay's Trail" by the Perlows in May 1982 for use for "hiking and equestrian trails," two and a half years after the Disputed Easement, raises reasonable, conflicting inferences. While Plaintiffs would argue the term "riding" was intended to be broader to include bicycling, a reasonable, conflicting inference is that the Perlows may have been willing to make dedications of their land only for purposes limited to "equestrian" riding and hiking uses, which is consistent with Condition 15 to the granting of the minor subdivision in MS 263-78, and that for the avoidance of any doubt in the later document, they used the word "equestrian" in the Kay's Trail offer of dedication. (Hammond Decl. ¶ 19 and Exh. N.)

d. Disputed Facts as to Implied Acceptance Given the Dispute Over the Meaning of the Offer of Dedication

Roughly half the declarations offered by Plaintiffs are from current or former residents of Diablo, whose use of the Disputed Easement could be inferred to be based on permissive use and neighborly accommodation, as Wooten implicitly declares he was allowing over his property. The factual nature of the dispute over the existence of implied public acceptance of the offer of dedication is highlighted by the extent of use by residents, and the fact nonresidents' use may have required permissive use of the Wooten Property to access the trail and involved bicycling which may be outside the offer of dedication. The case law indicates there is some assumption that allowing neighbor use is more permissive and being "neighborly" as opposed to opening the property to the public. (*See generally Friends of Hastain Trail v. Coldwater Development, LLC* (2016) 1 Cal.App.5th 1013, 1041 [concurrence, noting children are natural trespassers and their use does not reliably show public use]; *Friends of the Trails v. Blasius* (2000) 78 Cal.App.4th 810, 825 [addressing neighborly accommodation as opposed to use by the general public].)

There are triable issues as to whether an offer to make a public dedication of the Disputed Easement for horseback riding and hiking can be accepted by bicycle riding, as there are triable, factual disputes as to whether bicycle riding is outside the scope of the offer of dedication that was made and/or the conditions for approval of the subdivision. (*See Shenson, supra*, 89 Cal.App.5th at 1172; Civ. Code §§ 806 and 1066.) Under ordinary contract principles of offer and acceptance, acceptance of an offer with additional terms outside the offer is considered a counteroffer, not acceptance, raising triable issues of fact on the acceptance of the easement, which Plaintiffs expressly plead is for bicycle use. (*See generally Bullock v. McKeon* (1930) 104 Cal.App. 72, 79 ["In order to make an acceptance of an offer binding, it must conform to the terms of the offer and must not propose new conditions. If it does so, it is not an acceptance, but constitutes a counter offer which in turn must be accepted to become binding on the parties."].)

The Court disagrees with Plaintiffs' position that the permitted uses of the easement based on the "riding and hiking" dedication does not need to be decided to determine the quiet title cause of action and establish the existence of the easement. Plaintiffs have put at issue the use of the easement and have alleged that the use of the Disputed Easement by bicycle riding was the public's implied acceptance of the Disputed Easement. (*See* FAC ¶¶ 13-16.) Liberally construing the evidence before the Court, Condition 15 and other evidence supports a finding that the offer of dedication was for equestrian riding, and the evidence shows that there was fairly limited use of the Disputed Easement for equestrian riding after MS 263-78 was recorded, and that such use was mostly limited to homeowners in Diablo or people who boarded their horses in Diablo. (*See, e.g.,* L. Forman Decl. ¶ 6 ["By the mid to late 1980s most horses were gone from Diablo from my experience. Horse properties were subdivided and the last stables also closed. It is rare to ever see a horse on any Diablo Roads these days."]; L. Scott Decl. [boarded horse in Diablo 1979-1984].)

The Court finds the evidence (disputed) over the timing and extent of the fencing of the Sipos Property potentially blocking access from Mt. Diablo Scenic Boulevard and requiring use of the neighboring Wooten Property and at nearly the same time of limitation or elimination of most use of the Disputed Easement for equestrian riding, which was undisputedly part of the offer of dedication, indicates the offer of dedication was revoked before it was validly accepted by the public. The Court

also finds that there are triable issues requiring a weighing of evidence as to whether the use by the public as opposed to residents was sufficient to constitute public acceptance for riding and hiking as stated in the offer, as Plaintiffs' evidence regarding public use is focused almost entirely on bicyclists which may be outside the offer of dedication, with little or no evidence that members of the general public used the trail for horseback riding or hiking/walking after the offer of dedication and before the fencing may have been erected in 1980. It is not clear that the public accepted the offer of dedication if the dedication was limited to equestrian riding based on the evidence. These factual issues are disputed and interrelated.

e. Sipos' Answer

The Court rejects Plaintiffs' argument in the reply that Sipos did not assert an affirmative defense based on implied revocation of the offer of dedication. The Sipos First Amended Answer to the First Amended Complaint filed August 15, 2025 includes several affirmative defenses under various titles which each include lengthy recitations of the facts she relies on in her opposition to the motion to raise a triable issue of material fact regarding revocation of the easement. (See First Am. Ans. 2nd, 3rd, 5th, 7th, 9th Aff. Defs.) While the affirmative defenses may not have been titled "revocation," the Court regards the facts pleaded and not the labels as setting forth Sipos's defenses. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [addressing a complaint, stating "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer. '[W]e are not limited to plaintiffs' theory of recovery in testing the sufficiency of their complaint against a demurrer, but instead must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. The courts of this state have . . . long since departed from holding a plaintiff strictly to the " 'form of action' " he has pleaded and instead have adopted the more flexible approach of examining the facts alleged to determine if a demurrer should be sustained.' [Citations omitted, italics in original.]"].)

f. Scope of Easement, Including Permitted Uses, Is Integral to Rendition of Judgment on the Quiet Title Cause of Action

The Court finds other disputed facts preclude summary judgment or summary adjudication of the quiet title action. Plaintiffs' own evidence shows there is steel tube fencing and a long row of hedges inside the Disputed Easement that more or less extend over the length of the Disputed Easement, further blocking access to the 25' width of the easement stated in the offer of dedication. If the public has used only a narrow strip of the Disputed Easement, far narrower than the width stated in the recorded offer of dedication, it is not clear that a 25 foot wide easement as stated in the offer of dedication was impliedly accepted, rather than some considerably narrower portion of the Sipos Property. If only a narrow strip was used even if bicycle riding was contemplated or qualifies for implied acceptance, consistent with some of the declarants' recollections of the "hole in the wall" access to the Disputed Easement, then there are triable issues as to whether the easement as stated in MS 263-78 or something narrower was actually impliedly accepted by the public.

The Court also disagrees with Plaintiffs' position that determination of the scope of the "riding and hiking" easement is not necessary to grant judgment to Plaintiffs on the quiet title cause of action and can be decided in some form of supplemental relief after summary judgment is granted. (See MPA

ISO Mot. p. 13.) The statute and case law only allow summary adjudication if it will "fully dispose" of a cause of action. (Code Civ. Proc. § 437c(f).) The *Ridec* decision cited by Plaintiffs to support that proposition is factually inapposite. The decision held that a bona fide encumbrancer for value which relied on a quiet title judgment was entitled to retain its lien despite a subsequent successful attack on the validity of the underlying quiet title judgment, based on Code of Civil Procedure section 764.060. It rejected in passing the argument that the Court's general authority to grant "such equitable relief as may be proper under the circumstances of the case" under Code of Civil Procedure section 760.040(c) allowed the trial court to override the express provisions of Code of Civil Procedure section 764.060 to impair the rights of the bona fide lender. (*Ridec LLC v. Hinkle* (2023) 92 Cal. App. 5th 1182, 1200.)

Vanderkous v. Conley (2010) 188 Cal.App.4th 111 is similarly inapposite. The Court of Appeal held that even without a cross-complaint by the defendant, who claimed an equitable interest in the property in dispute, the trial court could award the defendant the value of her equitable interest and adjust a lot line to quiet title to a portion of the property in the defendant's favor as part of a judgment quieting legal title to another area of the property in favor of the plaintiff. (*Id.* at 112-114, 119-120 [plaintiff's argument regarding lack of a cross-complaint seeking affirmative relief "ignores the extent of the court's equity jurisdiction in a quiet title action where 'the court has jurisdiction to hear and determine all issues necessary to do complete justice.' [Citations omitted.]]").) Notably, the Court concluded that the defendant's answer which sought " 'such other and further relief as the Court may deem just and proper' " was enough to put at issue quieting title to a portion of the property in her favor against the plaintiff, and "[h]er defense also served to vest the court with the equitable power to do justice between the parties. The direction that Vanderkous compensate Conley for her quitclaim deed is obviously intended to do just that. [Citation omitted.]" (*Id.* at 120.) The cited portion of the case relied on by Plaintiffs only reinforces that the scope and extent of the easement are properly subsumed within the quiet title cause of action and relief to be granted, and that these are issues that the Court should decide as part of the determination of the quiet title cause of action. Notably, Sipos' answer contains the same language in her prayer for relief. (Sipos Ans. Prayer for Relief ¶ 3.)

Under the circumstances of this case, whether the offer of dedication encompassed more than equestrian and hiking use and whether bicycling members of the public could accept the offer of dedication by bicycle use are triable issues that are integrally related to the meaning, nature, and scope of the offer of dedication and the nature and scope of the easement that cannot be separated from Plaintiffs' claim to quiet title to the Disputed Easement.

D. Interference with Easement – 3rd C/A

The triable issues relevant to the quiet title cause of action necessarily mean there are triable issues with regard to the interference with easement cause of action. If there is no easement, if the offer of dedication was not validly and timely impliedly accepted by public use within the scope of the offer of dedication, and/or if the offer of dedication was impliedly revoked by the erection of fencing not long after the offer was made, then there cannot be unlawful interference with the easement by the "Obstructions" defined in the FAC

Conclusion and Ruling

The Court concludes there are triable issues of material fact as to the quiet title and interference with

easement causes of action for the reasons stated. Plaintiffs have not persuaded the Court that they are entitled to judgment as a matter of law based on the applicable law and evidence in the record, the conflicts in the evidence, and reasonable conflicting inferences that can be drawn from the evidence. The motion for summary judgment and for summary adjudication of the first and third causes of action is therefore **denied**.

Plaintiffs' Evidentiary Objections to Defendant's Declarations

A. Wooten Declaration

Obj. No. 1 (¶ 5): **Overruled**. Objections go to weight not admissibility.

B. Sipos Declaration

Obj. Nos. 1 and 3: **Sustained**.

C. Signorotti Declaration

Obj. Nos. 4-8: **Sustained in part**, to the extent the statements objected to in paragraphs 4(b) through (f) are offered for the hearsay purpose of the truth of the declarant's characterization of the records, but not to the extent the text is reasonably interpreted as merely providing a brief identification of the document attached as the specified exhibit. The Court notes Plaintiffs do not object to any of the exhibits to the Signorotti Declaration, including Exhibits 3 through 7 which are described in the text of Signorotti Decl. ¶¶ 4(b)-(f).

Defendant's Evidentiary Objections

Defendant objected only to portions of the Plaintiffs' request for judicial notice. The Court has addressed those objections above.

8. 9:00 AM CASE NUMBER: C24-00237

CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC

*HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

Summary

On February 20, 2026, the Court granted Preliminary approval of the settlement memorialized in the class action Settlement Agreement entered by plaintiff Connor Jeremy Beare ("Plaintiff") and defendants, the Law Offices of Mitchell D. Bluhm and Associates, and Robert Bradley Ridgway ("Defendants"). The Parties now request final approval of settlement, which is **granted** as set forth herein. No appearance is required at the hearing on June 17, 2026.

Background

This is a class action lawsuit where the Plaintiff alleges that Defendants committed violations under various debt collection statutes and laws. Under the settlement terms, Defendants will pay a \$6,500 class fund to be distributed *pro rata* to Class Members. Each of the Thirteen Class Members besides Plaintiff will receive no less than \$500. Settlement checks that remain uncashed after 90 days from